DynaTech Systems Private Limited
511, Harmony Icon,
Near Bhaghban Party Plot, Zydus Hospital Road,
Thaltej, Ahmedabad- 380054 Gujarat, India,
Phone: 91 79-48906219
Email: hr@dynatechconsultancy.com

01st September, 2022

Gopalka Pratik

Vtc :Bilkha,
Po:Bilkha,
Sub District :Junagadh,
District:Junagadh,
State :Gujarat-362110,
india.

Dear **Pratik**

This refers to your interview and our subsequent offer, which has been accepted by you. The details of your appointment and terms and conditions are given below:

1. **Designation:** **Application Developer.**

2. **Commencement: 01st September, 2022 .**

3. **The base of Operation:** At our office in Ahmedabad. However, your service may liable to transfer at the sole discretion of management, in such other capacity as the company may determine to any department, Section, location, associate, sister concern, or subsidiary at any place in India or abroad, whether existing today or which may come up in future. In such case, you will be governed by the term & conditions of the service applicable at the new placement location.

4. **Probation:** You will be on probation for a period of **6 months** on completion of satisfactory and successful training and probation; you will be confirmed in your present position.

5. **Benefits & Perquisites:** The benefits and perquisites applicable to you are attached as **APPENDIX I** in mail provided to you.

6. **Further Terms & Conditions:** This appointment is further subject to the General Terms & Conditions of Service for Managerial Personnel employed by Dynatech **Systems Pvt. Ltd., a** copy of which is attached as **APPENDIX II**.

7. **Acceptance of this Appointment**: Please sign and return to us the enclosed duplicate of this letter in token of your acceptance of this appointment and all the terms and conditions applicable to it as detailed above and in the appendices attached hereto.

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We sincerely hope that this will be the beginning of a long and mutually beneficial association.

For, Dynatech Systems Pvt. Ltd

Hardik Patel,
Director

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APPENDIX II

GENERAL TERMS AND CONDITIONS OF SERVICE FOR EMPLOYEES EMPLOYED BY Dynatech Systems Pvt. Ltd, AHMEDABAD.

1. LEAVE

1.1 **Need Based Leave (CL & SL) of 6 days** for every calendar year on prorated basis from DOJ. This facility is given to the employee to take care of times when you are not feeling well or have some urgent personal work.

1.2 It may be noted that Unplanned/ urgent leaves **beyond 6 days Need Based leave** would be treated at unpaid leaves.

1.3 **Privilege leaves (PL) OR Vacation leaves of 12days** per calendar year on prorated basis from DOJ. For every completed month (Including weekly offs and public holidays) employee **would earn 1PL.**

1.4 Privilege leaves (PL) OR Vacation leaves accumulated by an employee can be utilized for planned vacations and time offs. It is strongly recommended that such leaves should be planned in advance keeping work exigencies in mind. Concerned line managers should be informed in advance for such planned vacations to ensure suitable backup.

1.5 To help employee plan their vacation/time offs, Weekend falling between PL OR vacations leaves would not be counted as leave.

1.6 During a calendar year, leaves exceeding actual PL accumulation limits would be treated as unpaid leaves and would be purely base on the discretion of management.

1.7 Once employee has completed a year of service, employee can eligible for maternity leave policy. Maternity leave is being provided for 6 months and half paid as per annexure-I, also service bond period will be extended according to maternity leaves taken by employee.

2. OFFICE TIMINGS & WEEKLY OFF

2.1 All employees are required to complete **9 hrs working** every day. This includes **0.5-hour** break which includes Lunch & Personal breaks.

2.2 Though we do not believe in a strict reporting and closing time, but to ensure business continuity, **12:00pm to 5:00pm** have been defined as core business hours. Employees are generally required to remain present in office during core business hours.

2.3 All Saturday & Sundays **are observed as a weekly off except last Saturday of each month**.

2.4 Employees working in client support role or deputed at client site may be required to follow the shift timings, weekly off patterns, Holidays, Comp –off rules as agreed with respective client on case to case basis. The concern reporting manager shall inform this rules and guidelines to respective team member before assigning or deputing them for client support role.

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3. HOLIDAYS

3.1 Paid Holidays (festival holidays) of the company shall be defined based on central and state government holidays list. **10 paid holidays** would be announced for every calendar year.

3.2 Employees deputed at client site would follow the holiday patterns announced by the client at the respective site.

4. Bond

You will serve with us for the minimum period of **30 months** from the date of your joining (excluding notice period) and Bond amount of Rs. **250,000** will be executed by you.

5. NOTICE OF TERMINATION

During Probation Period:
Three months' notice on either side with the Company retaining the right to pay one month's salary in lieu of the notice.

After Confirmation:
Three months' notice on either side with the Company retaining the right to pay one month's salary in lieu of the notice.

Termination on account of Misconduct, Unethical behaviour or gross violation of company's code of conduct
Your employment is liable for termination any time during your probation or thereafter, without any prior notice if you are found guilty of Misconduct, Unethical behaviour or Gross violation of company's code of conduct that may directly or indirectly cause harm to company's image, business, clients, client's employees, company's employees or any business affiliate. Whenever resignation is revoked, employee will not be able to put resignation again in next 6 months.

6. TRANSFERABILITY

Your initial posting will be at Ahmedabad. However, your service are liable to be transferred at the sole discretion of management, in such other capacity as the company may determine, to any department/ Section, location, associate, sister concern or subsidiary, at any place of India or abroad, whether existing today or which may come up in future.

In such a case, you will be governed by the terms & conditions of service applicable at the new placement location.

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7. RETIREMENT AGE

You shall retire from the services of the Company on attaining the age of **58 (Fifty Eight**) years.

8. INTELLECTUAL PROPERTY

If you conceive any new or advanced method of improving designs / processes / formulae / systems, etc. in relation to the business / operations of the company, such developments will be fully communicated to the company and will be, and remain, the sole right / property of the company.

9. EXCLUSIVITY

Your position is a whole time employment with the company and you shall devote yourself exclusively to the business of the company. You will not take up any other work for remuneration or work on advisory capacity or be interested directly or indirectly in any other trade or business during the employment with the company without permission in writing from the management.

10. OTHER TERMS AND CONDITIONS

10.1 You will, unless prevented by ill health or accident and save while on approved leave, devote the whole of your time, attention, and abilities to the business of the Company.

10.2 You will not at any time hereafter, without the consent of the Company in writing, except under legal duress, divulge or make public any matter relating to the Company's transactions, dealings or plans which are of confidential nature.

10.3 You will be true and faithful to the Company on all your accounts, dealings and transactions whatsoever relating to the business of the Company, and shall, at all times, when required, render a true and just account thereof to the Company or to such persons as shall be so authorized by the Company.

10.4 It is expressly agreed that this Appointment is made on the basis that your services being mainly of a Management and/or Supervisory nature, you will not be entitled to any rights, privileges, and benefits as may be or become applicable to employees covered by the Industrial Disputes Act, 1947.

10.5 Management holds rights to review alter and amend terms and conditions in accordance with business needs with appropriate communication to all employees.

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